

Willie Reinhardt et al.
No. 6384. vs

In the District Court, Polk
County, Texas,

Fredrica Splittstoesser et al.

May Term 1937.

On this the 16th day of June, 1937, came on to be heard the above numbered and entitled cause in which Willie Reinhardt and Julius Reinhardt are plaintiffs and Charlie Reinhardt, Fredrica Splittstoesser and her husband E W Splittstoesser are defendants, the plaintiffs appearing in person and by their attorneys announce ready for trial and the defendant Charlie Reinhardt and Fredrica Splittstoesser and her husband E W Splittstoesser as original defendants herein though having filed their answer hereto appear not and say nothing in answer to plaintiffs cause of action, and the jury having been waived, and all matters of fact as well as of law having been submitted to the Court, the Court, after hearing the pleadings, the evidence and the argument of counsel, is of the opinion and finds that plaintiffs and defendants are the sole owners of, and are by law entitled to partition and division in the following shares of the property described in the plaintiffs original petition and each of the above named parties of said suit are entitled to one-fourth ($\frac{1}{4}$) of the quantity, quality and value of said land described as follows, to-wit:

First Tract
(121 acres)

First Tract: a part of the William D Valentine survey and described thus: Beginning at the N W corner of the J H Parsons survey, a stake, chestnut oak brs N 7 ft 6 ins, Holly 10 in x brs S 6 ft 9 ins;

Thence East with said Parsons line at 79 ins McMahon Creek 107 ins corner stake white oak S 60 ft 3:2 ins; white oak x N 5 ft 8 ins;

Thence N 198 ins to corner said Valentine survey, stake magnolia brs - 38 ins, ash brs N 10 ft 3 ins,

Thence West 120 ins cross creek, at 950 ins stake for corner pine brs S 61 ft 4 ins, pine brs S 53 ft 9 ins;

Thence South with the West line of said Valentine survey, at 984 ins stake, 100 feet from center of the M. K & T Ry for corner;

Thence with said M K & T right-of-way, being 100 feet from the center of its railroad track, to the East line of said Valentine survey which is also the West line of the J H Parsons survey, stake for corner 100 feet from

the center of the said M K & T Ry track;

Thence North with said Parsons line #72 vrs to the place of beginning, containing one hundred and twenty-one (21) acres of land.

Second Tract
(16 acres)

Second Tract:- A part of the J H Parsons survey and described thus:

Beginning at the NW corner of said Parsons survey stake, holly 10 in mcd x brs S 69 E 9 vrs. white oak 24 in brs N 7 W. 6.4 vrs;

Thence East 79 vrs to center of McManus Creek. Corner in said Creek.

Thence up said creek with its meanderings to a stake for corner 50 feet from the center of the M K & T Ry track;

Thence S 81 W. 50 feet from the center of said Railroad track to the first line of said Parsons survey, which is also the East line of the Valentine survey. Stake for corner 50 feet from the center of said Railroad track;

Thence North with the West line of said Parsons survey, #72 vrs to the place of beginning, containing sixteen (16) acres of land.

It is therefore ordered, adjudged and decreed by the Court that said above described land be, and the same is hereby ordered and directed partitioned: one fourth ($\frac{1}{4}$) share to each of the parties to this suit, according to quantity, quality and value. One fourth to Willie Reinhardt, one fourth to Julius Reinhardt one fourth to Charlie Reinhardt, and one fourth to Fredrica Spillholtsen.

It also appearing to the Court that V B Bailey, N L Wright and E M Barchfield, are resident citizens of Dolé County, Texas, and are competent and disinterested persons, it is further ordered that they be, and they are hereby appointed Commissioners to make a fair, equal, just and impartial partition of said land and premises above described, and in the shares above mentioned, among the plaintiffs and defendants by lot as far as may be possible all according to this decree and the law, and when such partition is completed, to report the same in writing and under oath to this Court, on the 16th day of June, 1937, the same being a regular term of this Court.

E P Murphy, Judge.